

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC,

RESPONDENT.

**COMPLAINANT’S PETITION FOR EXTENSION OF DEADLINE TO FILE
EXCEPTIONS**

Complainant Peloton Interactive, Inc. (“Peloton”), by its undersigned attorneys, respectfully petitions the Commission pursuant to 46 C.F.R. §§502.228 and 502.102(a) (“Petition”) for an extension of the deadline to file Exceptions to the Initial Decision (“Exceptions”) from the prescribed 22 days to 60 days, extending the current October 1, 2026, deadline to November 9, 2026. Peloton further requests that, if the Commission grants this Petition, the deadline for Respondent to file any Response to Exceptions be extended by a commensurate period that the Commission determines is reasonable.

On September 9, 2026, the Presiding Officer issued a 70-page Initial Decision denying Peloton’s Complaint in its entirety. Under 46 C.F.R. § 502.227(a), Exceptions are currently due October 1, 2026, and Responses to Exceptions would be due October 23, 2026. Peloton submits

that good cause exists for the requested extension. The underlying record is extensive: it includes more than 160,000 pages of produced documents, eleven depositions of fact and expert witnesses, and comprehensive expert reports addressing both liability and damages. Peloton's claims involve \$33.7 million in demurrage, detention, and related charges across more than 3,249 invoices. The record also includes a high volume of data, comprising 275,626 line items extracted from Flexport's CORE platform.

The Initial Decision addresses complex and contested legal issues, including the application of the Incentive Principle to NVOCC charges, the role and review of the container-by-container analysis, the application of burden-shifting under the Shipping Act, and the reliability of expert testimony. The Initial Decision also addresses outstanding discovery disputes and sanctions requests. Given the size and complexity of the record, the number and significance of the rulings set forth in the Initial Decision (which includes 206 findings of fact), meaningful review and preparation of Exceptions cannot reasonably be completed within the 22-day period provided by 46 C.F.R. § 502.227. Additional time is necessary to permit a thorough evaluation of the Initial Decision, the evidentiary record, the issues presented for Commission review, and the implications of recent Commission decisions bearing on those issues. Good cause therefore exists to extend the deadline for filing Exceptions.

The Commission has granted extensions of similar duration in proceedings of comparable complexity. Extensions of 30 to 60 days have been granted where the initial decision was lengthy, the record was voluminous, and the legal issues were complex. *See, e.g., 20230930-DK-Butterfly, Inc. v. Orient Overseas Container Line Ltd.*, Dkt. No. 23-02, 2026 WL 1286237 (FMC May 7, 2026) (extended deadline to 60 days granted for a 203-page initial decision involving a \$45.6 million dispute); *IMCC v. Ocean Carrier Equipment Management Ass'n*, Dkt. No. 20-14, 2023

WL 2160132 (FMC Feb. 17, 2023) (extension granted for a 60-page initial decision involving 13 respondents and over 9,000 pages of record); *Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC Possible Violations of 46 U.S.C. 41102(c)*, Dkt. No. 21-09, 2022 WL 1553319 (FMC May 11, 2022) (20-day extension granted in the Commission’s first enforcement proceeding under the Interpretive Rule); *Way Interglobal Network, LLC v. Shenzhen Unifelix SCM Ltd.*, Dkt. No. 22-28, 2024 WL 2208625 (FMC May 10, 2024); *Way Interglobal*, 2024 WL 3443995 (FMC July 8, 2024) (extensions granted based on over 8,000 pages of record and 47-page decision). The requested extension is reasonable, proportionate to the complexity of this proceeding, and consistent with Commission practice. Granting the Petition will afford the parties adequate time to address the significant legal issues and voluminous factual record and to prepare tailored Exceptions for the Commission’s consideration.

Pursuant to 46 C.F.R. § 502.71, counsel for the parties have conferred regarding the requested extension. On September 15, 2026, counsel for Peloton contacted counsel for Respondent Flexport International LLC (“Flexport”) to request Flexport’s position on the requested extension. Flexport’s counsel advised that they would need to discuss the request with their client. Following that discussion, Peloton’s counsel provided Flexport’s counsel with a draft copy of the proposed extension motion for review. On September 16, 2026, Flexport’s counsel emailed Peloton counsel advising that “[r]espectfully we do not believe the extension sought is warranted. In good faith, however, and as a professional courtesy, Flexport would consent to a 7-day extension, with a reciprocal extension for our Reply.”

For the reasons explained above, a 7-day extension would not be sufficient, and Peloton therefore respectfully requests that the Commission extend the deadline for filing Exceptions to the Initial Decision to November 9, 2026, and in recognition that Respondent’s offer for a 7-day

extension on the Exceptions was conditioned on a 7-day extension for its Responses to Exceptions, Peloton also requests that the Commission extend the Response deadline by a commensurate period that the Commission determines is reasonable. Peloton submits that the requested extension is sought in good faith and will not result in undue prejudice or delay. Granting the requested extension will promote a more complete and efficient presentation of the issues that warrant Commission review in light of the size of the record and the complexity of the Initial Decision.

Dated: September 16, 2026

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: September 16, 2026

/s/ Ashleigh Higgs